

Smt. Lalita Patel vs Jitendra Patel on 26 April, 2022

NAFR

HIGH COURT OF CHHATTISGARH, BILASPUR

TPC No. 89 of 2021

Smt. Lalita Patel W/o Shri Jitendra Patel, aged about 28 years R/o
Ekta Colony, Near DLS College, Sarkanda, Bilaspur, District :
Bilaspur, Chhattisgarh

---- Petitioner

Versus

Jitendra Patel S/o Shri Kamleshwar Prasad Patel, aged about 34
years R/o Village Loharsi, Rampurpara, P.S. Sheorinarayan, District
Janjgir-Champa Chhattisgarh. Presently Residing At L.I.G. 102,
Deendayal Awas, Janjgir, District : Janjgir-Champa, Chhattisgarh

---- Respondent

For
Petitioner : Mr. Atul Kumar Kesharwani, Advocate. For Respondent : Mr. Rishikant Mahobia,
Advocate.

Hon'ble Shri Justice Arvind Singh Chandel Order On Board 26.04.2022

1. This transfer petition has been filed by the wife/petitioner under Section 24 of the Code of Civil Procedure, 1908 for transferring the matrimonial proceedings of the Civil Suit No. 52-A/2021 (Mr. Jitendra Patel vs. Smt. Lalita Patel) under Section 13 of the Hindu Marriage Act, 1955 pending before the Family Court, Janjgir, District: Janjgir-Champa Chhattisgarh.

2. Facts of the case are that marriage of the petitioner and the respondent solemnized on 06.05.2017 at Bilaspur (C.G.). After some days of their marriage, a dispute took place between them, and after the dispute the petitioner started to reside at Bilaspur (C.G.) in her parental house. Meanwhile, the respondent/husband filed an application under Section 13 of the Hindu Marriage Act, before the Family Court, Janjgir, Chhattisgarh.

3. Counsel for the petitioner submits that the petitioner is a lady and due to the poor financial condition, she is not able to attend the proceedings at Family Court, Janjgir, which is 50 Kms away from Bilaspur. He also submits that there is also a case of domestic violence registered against respondent which is pending before learned JMFC, Janjgir registered as Criminal Case No.457 of 2018. Therefore, it is prayed that the case filed by the respondent/husband which is pending before Family Court, Janjgir-Champa, Chhattisgarh may be transferred to Family Court, Bilaspur,

Chhattisgarh.

4. Learned counsel appearing for the respondent/husband opposes the application submitted by the petitioner/wife.

5. I have heard learned counsel appearing for the parties and perused the entire material available on record with utmost circumspection.

6. Considering the facts and circumstances of the case, considering the fact that the applicant is a lady, looking to her health condition and also considering the fact that she is residing in her parental house at District: Bilaspur (C.G.) which is 50 kms far away from District: Jangir-Champa, Chhattisgarh. I am inclined to transfer the Civil Suit No. 52-A/2021 (Mr. Jitendra Patel vs. Smt. Lalita Patel) which is pending before Family Court, Janjgir to Family Court, Bilaspur, Chhattisgarh.

7. Accordingly, the instant transfer petition is allowed. The Civil Suit No. 52-A/2021 (Mr. Jitendra Patel vs. Smt. Lalita Patel) which is pending before Family Court, Janjgir, District: Janjgir-Champa (C.G.) is directed to be transferred to Family Court, Bilaspur, Chhattisgarh with immediate effect.

8. Both the parties shall remain present before the Family Court at Bilaspur (C.G.) on 05.07.2022 for further proceedings.

9. A copy of this order be sent to Family Court, Janjgir, District:

Janjgir-Champa, Chhattisgarh and Family Court, Bilaspur, District:

Bilaspur, Chhattisgarh forthwith for information and necessary compliance.

Sd/-

(Arvind Singh Chandel) Judge Saurabh